

Court No. - 36

Case :- WRIT - C No. - 72954 of 2010

Petitioner :- Pratap Singh

Respondent :- The State Of U.P. Electricity Deptt. And Another

Petitioner Counsel :- Mithilesh Kumar Shukla,Avanish Kumar Shukla

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent No. 1 and Shri Rajesh Tripathi, learned counsel for respondent No.2.

By this writ petition, the petitioner has prayed for a mandamus directing the respondents to accept the electricity dues in easy installments. Petitioner has annexed the electricity bill dated 13.2.2010 for an amount of Rs.119767/-.

Learned counsel for the respondents submits that under para 6.14 of Electricity Supply Code, 2005 petitioner may approach the Executive Engineer by making a written request for installments which shall be considered.

Considering the facts and circumstances of the present case, liberty is provided to the petitioner to make a written representation to the Executive Engineer making his request for depositing the outstanding amount in installments which shall be considered by the authority concerned.

The writ petition is disposed of.

Order Date :- 16.12.2010

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